

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	24CV431703	Pingping Xiu et.al. vs. Dinggang Xu, et.al.	Defendant moves this court to award attorney fees in the amount of \$5303.85. Plaintiff failed to show up at her noticed deposition in March, 2026. Plaintiff did not oppose this motion for attorney fees. Defendant's motion is GRANTED.
9:00 2	24CV434917	Darcel Stoner vs. SCA of CA, LLC	See below.
9:00 3	24CV436120	Kelly Maycock vs. Matthew Santiago, et.al.	Plaintiff petitions this court to compel further production of documents. RFP 77, 78, 83, 85, and 127 requesting all communications between Plaintiff and various employees are overbroad. Therefore, Plaintiff's petition to compel those documents are DENIED. Likewise, RFP 142 requesting reports from each part time supervisor who worked at the UPS location in Sunnyvale is overbroad. Therefore, Plaintiff's petition to compel those documents are DENIED. Request no. 94 and 110 which ask for documents pertaining to Mr. Santiago's departure from UPS are deemed relevant. Therefore, Plaintiff's petition to compel those documents are GRANTED. UPS' responses to RFP No. 71, 72, 76, 79, 80, 81, 86, 87, 88, 90, 92, 95, 96, 98, 99, 100, 102, 103, 104, 106, 107, 114, 115, 117, 118, 121, 122, 123, 124, 125, 128, 129, 130, 131, 132, 133, 134, 135, 136, 137, 138, 139, and 140 are sufficient; therefore, Plaintiff's petition to compel those documents are DENIED. Supplemental responses to RFP No. 91, 93, 97, 104, 111, 112, and 113 are GRANTED. Given that there have been several meet and confer meetings between Plaintiff and Defendants, Plaintiff's motion for monetary damages are DENIED.
9:00 4	24CV450640	Courtney Williams vs. FCA US, LLC, et.al.	Plaintiff petitions this to compel defendant's to produce documents it promised to comply with. Plaintiff propounded a request for production of documents. Defendant promised to comply. Defendant has failed to comply with its own promise to produce documents for over one year. Defendant has not objected to Defendant's petition. Plaintiff's petition is GRANTED. Plaintiff's motion for monetary sanctions for the amount of time Plaintiff spent preparing the motion is GRANTED.
9:00 5	24CV453902	Sukhi Sander vs. Ford Motor Company	Defendant moves this court for summary adjudication against Plaintiff's complaint. Plaintiff filed no objection. Summary adjudication as to Plaintiff's sixth cause of action is GRANTED.
9:00 6	25CV465436	Villa Montanas vs. Garrett Kolb	Case off calendar
9:00 7	25CV468878	Gabrielle Hubbard vs. Ford Motor Company	See below
9:00 8	25CV474036	Mohammed Zarghami vs Sara Falaha	See below.
9:00 9	25CV480230	Edward Duarte vs. FCA US, LLC, et.al.	Plaintiff moves this court to compel Defendant to produce initial disclosures pursuant to CCP section 871.26. Defendant argues that disclosures required by CCP section 871.26 have indeed been produced. Plaintiff argues that Defendant has failed to provide CAIR records, PDI/NVP records, wiTech Diagnostic Data, Service Manuals, verified statement that ISB's does not exist, confirmation as to whether all "Trouble Not Found" claims for the Subject VIN have been produced. This court finds that such disclosures are required by CCP section 871.26 and need to be produced if in fact they exist. Plaintiff's petition is GRANTED.

9:00 10	25CV480504	Amanda Butler vs. Steven Cohen, et.al.	Case off calendar
9:00 11	24CV443183	Shenna Huynh vs. REDIS LABS, Inc.	Plaintiff moves this court for monetary and terminating sanctions. Plaintiff argues that Defendant and counsel have not complied with this Court's order to serve verified supplemental response without objection, provide a privilege log, identify the documents responsive to each request, and submit a declaration addressing Slack preservation. Defendant admits that there are discrepancies with Bates misnumbering the privilege log. Defendant now admits that Slack data has been maintained since January 21, 2021 when it earlier represented that Slack data had not been preserved. Defendant asserts that it has been attempting in good faith to rectify its shortcomings. This court finds Defendant's response to be of much concern; however it does note that Defendant appears to be attempting to respond to a voluminous discovery request albeit late. Plaintiff's motion for monetary sanctions in the amount of \$10,320 against Defendants is GRANTED. Plaintiff's motion for terminating sanctions is DENIED.
9:01 1	25CV482021	AVNET, INC.,et. al. vs AMPERE COMPUTING, LLC, et.al.	Jonathan Brinson moves this court to accept his pro hac vice application to appear as counsel for Plaintiff. There is no opposition to Mr. Bronson's application. Mr. Bronson's application is GRANTED.

Calendar Line 2

Case Name: *Darcel Stoner v. SCA of CA, LLC*

Case No.: 24CV434917

Defendant SCA of CA, LLC ("SCA") has brought a motion for judgment on the pleadings ("JOP motion") as to the complaint filed by plaintiff Darcel Stoner ("Stoner"). A JOP motion "is equivalent to a belated general demurrer." (*Sprague v. County of San Diego* (2003) 106 Cal.App.4th 119, 127.) It has the same function as a general demurrer, but it is made after the time for demurrer has expired.

The court GRANTS judicial notice of Exhibit 1 to SCA's request for judicial notice. (SCA's Request for Judicial Notice ("SCA RJN"), Ex. 1.) The court may take judicial notice of records of any court of this state. (Evid. Code, § 452, subd. (d).) Notice is only taken of the existence of these documents. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 (*Oh*) [truth of contents of court records cannot be judicially noticed].)

The court GRANTS judicial notice of Exhibits 1 and 2 to Stoner's request for judicial notice. (Stoner's Request for Judicial Notice ("Stoner RJN"), Exs. 1, 2; see Evid. Code, § 452, subd. (d).) Notice is only taken of the existence of these documents. (*Oh, supra*, 53 Cal.App.5th at pp. 79-81.)

According to SCA, in 2023 Stoner filed a putative class action that remains pending. (Memorandum of Points and Authorities in Support of JOP Motion ("MPA"), p. 6:3-6; see SCA RJN, Ex. 1.) SCA argues that the present action "repackages" the failure to pay allegations at